

The complaint

Mr C complains Vitality Health Limited has unfairly declined a travel insurance claim. Mr C is represented in this complaint by his father, but to keep things simple my decision will refer only to Mr C, and not his father.

What happened

In 2019, Mr C's mobile phone was stolen while he was on holiday. As he had travel insurance cover with Vitality, he made a claim for the stolen phone under the policy.

Vitality declined the claim. Mr C didn't think this was fair so he complained to Vitality. In its final response, Vitality said it had correctly declined the claim because the police report confirmed the phone had been stolen from Mr C's hand after he had fallen asleep in a nightclub. Vitality said it must decide claims in line with the policy terms and conditions, which says it won't pay claims for:

- *'theft or loss of belongings when the belongings were left unsecured or **unattended** at any time unless deposited in a hotel safe, safety deposit box or left in your locked accommodation'*
- *'theft or loss of belongings where any items have simply been forgotten or left behind (e.g. items left in the seat pocket of an aircraft), or where reasonable care has not been taken to avoid the theft or loss of the items'*

Vitality said it declined the claim because it didn't consider Mr C being asleep with the phone in his hand in a busy public place to be taking reasonable care to avoid theft or loss. It said the terms and conditions give 'unattended' in bold because the policy defines unattended as *'When you are not in full view of, and not in a position to prevent unauthorised interference with, your belongings or vehicle'*. Vitality said it thought Mr C wasn't in full view of his phone, or in a position to prevent unauthorised interference with it.

Mr C brought his complaint to our service. He said he didn't think it was fair for Vitality to decline the claim on the basis the phone had been unsecured, unattended, forgotten or left behind, because though he had fallen asleep momentarily, he was physically holding the phone. So he didn't think those words were valid descriptions of the situation, and he thought Vitality was 'hiding behind rhetoric'.

After looking into things our investigator said that because Mr C had fallen asleep, he wasn't in full view of his phone and had no reasonable prospect of being able to prevent any unauthorised interference with it. So it was fair and reasonable for Vitality to decline his claim on that basis.

Mr C disagreed. He said the reasoning given presumably meant that if someone was on holiday and their possessions were stolen from their hotel room whilst they were asleep, a claim would be declined as it would be argued the possessions were unattended. And he said this was a genuine theft claim supported by a police report. As Mr C disagreed, his complaint has come to me for a decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I'm not upholding this complaint. I realise this will be a disappointment to Mr C but I'll explain my reasons.

The circumstances of Mr C's mobile phone being stolen are not in dispute, as both Mr C and the police report of the theft say the phone was taken from Mr C's hand after he fell asleep in a nightclub. I acknowledge that Mr C says this is a genuine theft claim, and I've not seen that there's any dispute about that.

What is in dispute here is whether Vitality fairly declined Mr C's claim. Vitality says it declined the claim because the phone was unattended (as defined within the policy terms), and Mr C didn't take reasonable care to avoid the theft of his phone. Mr C says that while he had fallen asleep, he was holding the phone and so it wasn't unsecured, unattended, forgotten or left behind.

To consider whether Vitality acted fairly in declining the claim, I've looked at the terms and conditions of Mr C's policy - they set out the circumstances under which any claim will or won't be paid. I've seen that the policy says a theft claim will not be paid when belongings are left unattended unless they are locked away, or where reasonable care has not been taken. The policy defines 'unattended' as *'When you are not in full view of, and not in a position to prevent unauthorised interference with, your belongings or vehicle'*.

And I've considered the circumstances of the theft, as set out in the police report and in what Mr C told our service when he referred his complaint to us. I acknowledge Mr C's point that his phone wasn't unattended because he was present and holding his phone when it was stolen. But Mr C was asleep when his phone was stolen. Since he was asleep, I think it's fair to say Mr C wasn't able to see his phone and wasn't in a position to prevent the unauthorised interference with his phone. So I don't think it was unreasonable for Vitality to conclude that Mr C's phone met the policy definition of 'unattended' when it was stolen.

I also acknowledge the argument Mr C has made regarding a hypothetical claim being declined if possessions are stolen from a locked hotel room while their owner is asleep. I note the policy conditions I've set out in the background to this decision allow claims from locked hotel rooms. However, I can only consider the circumstances of the particular complaint that has been brought to me. And given those circumstances, I don't think it was unreasonable of Vitality to conclude Mr C didn't take reasonable care to avoid the theft of his phone.

For these reasons, I'm satisfied Vitality hasn't acted unfairly in declining this claim, so I won't be asking it to do anything further here.

My final decision

For the reasons set out above, I'm not upholding this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr C to accept or reject my decision before 19 June 2020.

Ailsa Wiltshire
Ombudsman